

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Miriam Lynch	Team: Squad #05	CCRB Case #: 201410104	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Wednesday, 02/05/2014 5:30 AM, Friday, 08/29/2014 12:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/5/2015	Precinct: 24		
Date/Time CV Reported Thu, 10/02/2014 10:16 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 10/02/2014 10:16 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Christopher Cruz	2652	932502	GANG M

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Dunia Palacios	4383	940543	GANG M

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Christopher Cruz	Abuse: On February 5, 2014 and August 29, 2014, Det. Christopher Cruz entered and searched § 87(2)(b) in Manhattan.	A . Exonerated
B . DT3 Christopher Cruz	Abuse: On February 5, 2014 and August 29, 2014, Det. Christopher Cruz refused to show a search warrant to § 87(2)(b) at § 87(2)(b) in Manhattan.	B . Unsubstantiated

Case Summary

On February 5, 2014 and August 29, 2014, on both dates at approximately 5:30 a.m., Det. Dunia Palacios and Det. Christopher Cruz entered § 87(2)(b) to execute search warrants obtained for both of those dates (**Allegation A**). On both February 5, 2014 and August 29, 2014, Det. Cruz allegedly refused to show the search warrants upon § 87(2)(b)'s audible requests (**Allegation B**). § 87(2)(b) was arrested twice as a result of both incidents. For the February 5, 2014, incident, he was charged with § 87(2)(b). For the August 29, 2014 incident, he was charged with § 87(2)(b).

Mediation, Civil and Criminal Histories

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b) As of January 5, 2014, the request for a notice of claim for § 87(2)(b) was still pending (encl [8-b]). This case was not eligible for mediation due to multiple underlying arrests.

Civilian and Officer CCRB Histories

- Prior to this complaint, § 87(2)(b) filed CCRB complaint number § 87(2)(b) (encl [2-c]).
- Det. Cruz has been a member of service for eleven years, and this is the first complaint filed against him (encl [2-b]).

Potential Issues

There were no known civilian witnesses to this incident. In addition, there was no known video footage.

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)
§ 87(2)(g)
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§ 87(2)(g)

Recommendations

Allegation -Abuse of Authority: Det. Christopher Cruz entered § 87(2)(b) in Manhattan on February 5, 2014 and August 29, 2014.

It is undisputed that Det. Cruz entered § 87(2)(b) in Manhattan on February 5, 2014 and August 29, 2014. Valid search warrants were obtained that gave officers the authority to enter § 87(2)(b) in Manhattan on both February 5, 2014 and August 29, 2014 (encl [6-a] and

[6-t]), § 87(2)(g) _____, it is recommended that **Allegation A** be closed as **exonerated**.

Allegation -Abuse of Authority: Det. Christopher Cruz refused to show § 87(2)(b) a search warrant § 87(2)(b) in Manhattan on February 5, 2014 and August 29, 2014.

§ 87(2)(b) stated that he audibly asked Det. Cruz and Det. Palacios to show him a search warrant after he was handcuffed, and that neither detective acknowledged or honored the requests (encl [4-e]). Nevertheless, neither Det. Cruz nor Det. Palacios could recall § 87(2)(b) asking to see a search warrant, and neither detective could remember whether such a request was honored (encl [5-h] and encl [5-p]). Additionally, § 87(2)(b) did not indicate that any other officers were present at the time of the request. § 87(2)(g) _____

_____. Therefore, it is recommended that **Allegation B** be closed as **unsubstantiated**.

Team: Pod #5

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date